

24VECV06074 24VECV06074

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-09-18

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Case Number: 24VECV06074 Hearing Date: September 18, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Mario

Aquino,

Plaintiff,

v.

General

Motors LLC

Defendant.

Case Number Department

24VECV06074 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

for Attorney Fees

[THE

FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant request for fees in the reduced sum of \$11,470.00; (2) Deny request for costs.

I.

BACKGROUND

On

or about July 4, 2023, Plaintiff Mario Aquino (“Plaintiff”) purchased a 2023 Cadillac Escalade (the “Vehicle”). (Complaint ¶¶ 8.) The Vehicle was defective. (Complaint ¶ 9.)

On December

5, 2024, Plaintiff filed a complaint against Defendant General Motors LLC (“Defendant”) and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; and (3) violation of Song-Beverly Act – section 1793.2, subdivision (b).

On May

21, 2026, Plaintiff filed a notice of settlement of entire case.

On August

5, 2026, Plaintiff filed a motion for attorneys’ fees, costs, and expenses (the “Motion”). On September 4, 2026, Defendant filed an opposition. On September 11, 2026, Plaintiff filed a reply.

II.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer

prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of

costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

"The plain

wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred – both from the standpoint of time spent and the amount charged." (Robertson v. Fleetwood Travel Trailers of California, Inc. ("Robertson") (2006) 144 Cal.App.4th 785, 817, original italics.) The "prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Id. at pp. 817-818.) "The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court." (Id. at p. 822.)

"[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]" (Robertson, supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method "requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Id. at p. 819.) However, a trial court is "not required to apply a multiplier." (Id. at p. 822, original italics.)

III.

DISCUSSION

Plaintiff

moves for an order awarding Plaintiff attorneys' fees and costs in the sum of \$43,737.00, reflecting \$42,948.75 in attorneys' fees (including a multiplier of 0.5, or \$14,316.25). (Memorandum p. 1.) Plaintiff also moves for costs in the sum of \$788.25. (Id.)

Hourly

Rates:

Defendant

argues Plaintiff's counsels' hourly rates are excessive and unsupported.

(Opposition pp. 10-13.)

Plaintiff's

counsels billed at rates ranging from \$525.00 per hour to \$700.00 per hour. (Daghighian

Decl., ¶¶ 7-11.) Plaintiff's counsel

Sepehr Daghighian has "20+ years of litigation experience" and billed at \$625.00

per hour. (Id., ¶¶ 5, 7.) Plaintiff's counsel Michael H. Rosenstein has

"30+ years of litigation experience" and billed at \$700.00 per hour. (Id.,

¶ 8.) Plaintiff's counsel Brian T. Shippen-Murray, who played a supervisory of

counsel role, has been an attorney since 2012 and billed at \$550.00 per

hour. (Id., ¶ 9.) Plaintiff's counsel Alastair Frederick Hamblin has been

practicing lemon law since 2015 and billed at \$550.00 per hour as an associate.

(Id., ¶ 10.) Plaintiff's counsel Miguel A. Ortiz has practiced law since

2006 and billed at \$525.00 per hour as an associate. (Id., ¶¶ 11.)

The

court recognizes that Plaintiff's counsel possesses experience in this area of

law. However, based on the court's own observations in this matter and its

review of counsel's submissions, the court finds the hourly rates requested,

are in part, above what is reasonably warranted.

The

court finds \$600.00 per hour is reasonable for Sepehr Daghighian and Michael H.

Rosenstein, \$500.00 per hour is reasonable for Brian T. Shippen-Murray, Alastair

Frederick Hamblin, and Miguel A. Ortiz. (See *Goglin v. BMW of North America, LLC* (2016) 4

Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its

discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly

Consumer Warranty Act action.]

Time

Billed:

Plaintiff's

counsels billed a total of 49.40 hours on this matter. (Daghighian Decl., Ex. A

pdf p. 4.)

In
opposition, Defendant argues Plaintiff's counsels' hours billed are excessive.
(Opposition pp. 3-8.)

The
court agrees with Defendant that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a
lack
of efficiency in litigating the case and a lack of clarity in tasks performed."
(See Mikhaeilpoor v. BMW of North America, LLC (2020) 48
Cal.App.5th 240 256 ["Further, counsel's billing entries demonstrate a lack of
efficiency in litigating the case and a lack of clarity in tasks performed.
This evidence supports the trial court's finding that plaintiff's counsel
failed to act efficiently."]) Plaintiff's counsels are experienced in this area
of the law. Thus, the court will adjust the reflected time to reflect the
court's understanding that the time billed should reflect Plaintiff's counsels'
expertise in this area of the law.

Date

Task

Hours Requested

Adjusted Hours

Hourly Rate

9/25/24

Reviewed and
analyzed correspondence to client; audited client file regarding client
documents necessary to complete pre-litigation analysis; updated personal
notes regarding the same

0.10

-

\$500.00

10/22/24

Telephone Conference
with Client re: Pre-lit Case Review

1.00

-

\$600.00

11/11/24

Reviewed and
analyzed sales agreement; researched written warranty; reviewed and analyzed
repair orders; researched safety recalls and technical service bulletins;
researched known auto stop/start defects; drafted a detailed summary of the
repair orders; conducted a damages analysis; analyzed claims and likely
defenses; developed pre litigation status; updated the client management
software regarding the same; directed responsible paralegal regarding case
analysis, pre-litigation strategy and client consultation

2.00

1.00

\$500.00

12/13/24

Received notice of
case filing; accessed the Court's Docket to confirm the same and to confirm
future hearings; updated the litigation calendar, discovery plan and personal
notes regarding the same

0.10

0.00

\$500.00

02/21/25

Analyze discovery
requests and begin drafting responses.

1.40

1.00

\$500.00

02/25/25

Analyze discovery
requests and draft responses; compile document production.

1.80

1.00

\$500.00

03/17/25

Analyze file and
draft case management statement

0.6

0.20

\$500.00

03/17/25

Analyze discovery
file and draft email regarding discovery drafts.

0.20

0.10

\$500.00

03/17/25

Analyze case file

and draft written discovery requests, including requests for production, requests for admission, special interrogatories, form interrogatories, and accompanying declarations.

1.80

1.00

\$500.00

04/07/25

Reviewed and

analyzed the Court's Order setting the final status conference and trial; updated the litigation calendar and personal notes regarding the same

0.10

0.00

\$500.00

04/22/25

Receive and review

Defendant's Responses to Plaintiff's 1st Set of RFA's, RFP's, and Interrogatories; Analyzed same with regards to compliance with the Civil Discovery Act and Plaintiff's Requests; Draft meet and confer letter to Defense Counsel re: deficiencies in the discovery responses, in advance of bringing Motions to Compel; Email correspondence with paralegal re: same

2.60

1.0

\$500.00

04/22/25

Draft state court

SPO. Contact RP for service on OC

0.50

0.20

\$500.00

06/22/25

Email to OC re

discovery responses and motion to compel deadline extension.

0.20

0.10

\$500.00

06/25/25

Review file. Review

correspondence. Email OC regarding request for extension. Update discovery calendar.

0.30

0.10

\$500.00

02/27/26

Review case file and
status of trial preparation and discovery; Draft Notice of Deposition of
Defendant's Person Most Knowledgeable under CCP 2025.230; Draft
correspondence to opposing counsel for same

0.60

0.30

\$600.00

03/17/26

Draft meet and
confer letter to Defense Counsel re: failure to appear at PMK Depo
deficiencies in the discovery responses, in advance of bringing Motions to
Compel; Email correspondence with paralegal re: same

0.50

0.20

\$600.00

03/30/26

Review case file and
prior correspondence with defense counsel; Draft follow up letter to opposing
counsel in advance of motion to compel

0.50

0.20

\$600.00

04/24/26

Begin drafting trial documents, including exhibit lists, witness lists, jury instructions, special verdict form, voir dire questions, etc.

5.70

2.0

\$500.00

04/27/26

Draft 9 motions in limine, including declarations and proposed orders.

4.80

2.0

\$500.00

04/28/26

Finish drafting trial documents and compiling exhibits; draft letter to OC regarding trial documents.

2.30

1.0

\$500.00

05/12/26

Review status of trial preparation work; Email correspondence with AFH re: further trial preparation work

0.50

0.10

\$600.00

05/14/26

Settlement

communication with defense counsel and client; Evaluate and analyze same;

Prepare file notes re: sam

0.20

-

\$600.00

05/15/26

Prepare trial

documents for filing.

0.80

0.50

\$500.00

05/17/26

Review Parties'

document production; Compile and organize trial exhibits; Draft Trial Exhibit

List; Email correspondence with AFH re: same

3.80

1.00 [The Court

notes that Plaintiff filed an Exhibit List on 5/15/26]

\$600.00

05/18/26

Analyze Defendant's

8 motions in limine and draft oppositions to each.

5.30

2.00 [The Court

notes no oppositions were filed]

\$500.00

05/20/26

Telephone Conference

with Client re: latest defense office; Case settled in principle via
998-offer

0.50

-

\$600.00

06/16/26

Email correspondence

with opposing counsel re: Fee Demand

0.20

-

\$600.00

07/30/26

Review case file,

including pre-litigation and litigation history; Draft Motion for Attorneys'

Fees, Costs, and Expenses under Civil Code 1974(d)[1];
Draft accompanying SD Declaration and Proposed Order

3.50

2.50

\$600.00

10/16/26[2]

[Anticipated] Review

Defendant's Opposition Brief to Plaintiff's Motion for Fees; Draft Reply

Brief ISO: Motion for Attorneys' Fees, Costs, and Expenses under Civil Code
1974(d)[3]

5.00

1.0

\$600.00

10/16/26[4]

[Anticipated]

Prepare for and Appear at Hearing on Motion for Attorneys' Fees, Costs, and
Expenses under Civil Code 1974(d)[5]

2.50

1.0

\$600.00

(Daghighian

Decl., Ex. A pdf pp. 1-3.)

The

adjustments above reflect a \$17,062.50 reduction in the requested fees.

The

court finds the reasonable number of hours expended on this matter was 21.5 hours, at the hourly rates identified above.

Lodestar

Multiplier:

Plaintiff

requests a 0.5 lodestar multiplier. (Memorandum pp. 11-13.)

The court understands

that litigating Song-Beverly actions requires technical expertise. But “a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.)

Here, Plaintiff’s counsels displayed the skill, proficiency, and technical expertise commensurate with counsels’ experience and specialty. Nothing before the court indicates Plaintiff’s counsels’ representation exceeded that which would have been provided by other attorneys of comparable skill and experience billing at counsels’ rates.

Accordingly, the court

denies Plaintiff’s request for an enhancement.

Costs:

Plaintiff requests \$788.25

in costs. (Memorandum pp. 13-14.)

In opposition,

Defendant argues the request should be denied in its entirety because Plaintiff has not filed a Memorandum of Costs and has only provided a table generated by Counsels’ billing system. (Opp., at p. 13.) Thus, Defendant argues that the reasonableness or necessity of the costs are uncertain. (Id.)

The court agrees with Defendant

that Plaintiff was required to file a Memorandum of Costs to recover non-fee

litigation costs, like filing and service of process fees, even in a Song-Beverly action. Pursuant to California Rules of Court, rule 3.1700, subdivision (a)(1): "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case."

Accordingly, the court denies Plaintiff's request for costs.

IV. CONCLUSION

For the foregoing reasons, the request for attorneys' fees is granted in the reduced sum of \$11,470.00, to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this order. The request for costs is denied

Dated: September
18, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court

[1] The Court notes that the relevant statute is Civil Code section 1794, subdivision (d). The mistake is likely a Scrivener's error.

[2] The Court notes that the hearing is set for September 18, 2026.

[3] See footnote no. 1.

[4] See footnote no. 2.

[5] See footnote no. 1.